

General Terms and Conditions of Payment

1. Scope

These General Terms and Conditions shall exclusively apply to all our offers, contracts, deliveries and other services (hereinafter "delivery") provided to entrepreneurs, legal entities under public law or special funds under public law within the meaning of Sec. 310 para. 1 German Civil Code (BGB), also in all future business relations, even if they are not explicitly agreed upon again. These Terms and Conditions shall be deemed accepted upon order placement or receipt of the products at the latest. We hereby explicitly object to any deviating or supplementary conditions set by our customer, they shall not be binding for us; such conditions shall only apply if we have expressly agreed to them in writing. Also, in case we participate in a customer's electronic platform and activate any dialogue boxes requested by the system, such activation does not constitute an acceptance of the terms of use or any other general terms and conditions of the customer.

Should any provision of the present General Terms and Conditions be invalid, this shall not affect the validity of the remaining provisions thereof.

2. Formation of contracts, documents, industrial property rights

- 2.1 Our offers are not binding. A contract shall only come into force upon our order confirmation in writing or text form. Solely our order confirmation in writing or text form is relevant for the date, kind and quantity of the delivery. If the order is not confirmed by us in writing or in text form the contract shall come into force upon performance of the order at the latest. Statements made orally or by phone by our representatives shall be legally binding only if confirmed in writing or in text form.
- 2.2 We reserve all proprietary rights and copyrights to cost estimates, concepts, designs, drafts, drawings and other documents; these may be modified or made available to third parties only with our explicit approval. Drawings and other documents provided as part of an offer must be returned to us upon request at any time and in any event if the order is not placed with us. In case we deliver items according to drawings, models, samples or other documents provided by the customer, the customer shall ensure that industrial property rights of third parties are not infringed. If a third party, by invoking proprietary rights, prohibits in particular the manufacturing and delivery of such items, we shall be entitled to suspend all relevant activities and to claim damages without being obliged to analyse the legal situation (see also clause 8.3). In addition, the customer shall immediately indemnify us from any third-party claims related to documents provided to us by the customer.
- 2.3 We reserve the right to charge the costs for samples and testing parts as well as for tools required for their manufacturing. In case of doubt, payment shall be due and payable after acceptance of the first sample, test component or tool. Costs will be charged for procuring and manufacturing the tools required for serial production, unless agreed otherwise. In any case we maintain title to all tools made or procured by us even if the procurement or manufacturing costs are wholly or partially covered by the customer.
- 2.4 We shall be entitled to procure the materials for the entire order and to manufacture the total order quantity immediately. Any customer requests for changes after order placement can, therefore, not be taken into consideration, unless explicitly agreed otherwise.
- 2.5 To the extent necessary for manufacturing or planning related reasons, our deliveries may exceed or fall short of the agreed quantity by up to 10%.

3. Performance description

- 3.1 The quality of the delivered goods or services is finally described by the explicitly agreed features (e.g. specifications, labels, approvals, and other information). Any other qualities of goods and services are subject to a further explicit agreement. Therefore, any warranty for a special application purpose or particular suitability, life period or durability after passing of risk requires an explicit written agreement; otherwise the risk of suitability and use shall be borne by the customer. We reserve any customary or technically unavoidable deviations from physical and chemical quantities, including colours, recipes, chemical contamination, processes and the use of raw materials as well as order sizes and reasonable quantity variances, as far as this is not unreasonable towards the customer.
- 3.2 Details of the delivery item (e.g. as provided in catalogues, product information, electronic media or on labels, such as "best before" information) are based on our general experience and knowledge and are for purposes of reference value or labelling

only. These product details as well as expressly agreed features or application purposes shall not relieve the customer from the obligation to test the product for the intended purpose and to take the respective measures for careful storage.

- 3.3 Details of quality, durability and possible uses of our products do not include any guarantees, in particular as stipulated in Sec. 443 and 639 German Civil Code (BGB), unless such details are explicitly specified as guarantee in writing.

4. Delivery and delivery time

- 4.1 Lead times are provided for information purposes only and shall be non-binding, unless it is explicitly agreed that the delivery date shall be fixed, i.e. it is put in writing that the customer has no further interest in the delivery after the agreed date. Confirmed delivery dates are subject to the correct, complete and timely receipt of supplies by us. Delivery deadlines shall be considered as met if prior to deadline expiry the delivery item has left our facility or if we have informed the customer that the order is ready for shipment. Delivery periods shall not start to run until the customer has properly fulfilled its respective obligations and contractual duties, such as furnishing technical data and documents, approvals, making a down payment or providing a payment guarantee.
- 4.2 We are entitled to make partial deliveries.
- 4.3 Events of *force majeure* or other circumstances beyond our control that render the timely execution of accepted orders impossible shall relieve us from our delivery commitment as long as these events continue to exist. This means we do not assume the risk of procurement. Furthermore, we reserve the right to withdraw from the contract in case we do not receive the relevant products ourselves in spite of a respective prior procurement contract with our supplier; our responsibility for damages caused intentionally or negligently according to clause 8 remains unaffected. We will inform the customer without undue delay that the delivery item will not be available in time, and in case we withdraw from the contract we will return any consideration already received without undue delay.
- 4.4 It is generally not possible to return any sold and non-defective products.
- 4.5 In case the customer becomes subject to insolvency proceedings, or comparable proceedings under foreign law, provides a formal information of financial status (*Vermögensauskunft*) according to Sec. 807 German Code of Civil Procedure (ZPO), experiences payment difficulties or in case we become aware of a significant deterioration of the customer's financial situation, we shall be entitled to suspend deliveries immediately and to refuse the fulfilment of current contracts unless the customer provides the respective consideration or, upon our request, provides appropriate securities.
- 4.6 In case the customer is in default of acceptance or culpable breach of any accessory obligations, the customer shall indemnify us for any damages caused and any additional costs related thereto. Further claims and rights shall remain unaffected. In case of the customer's default of acceptance or payment, the risk of accidental loss and damage of the products shall pass to the customer.
- 4.7 In case the products are sent to the customer or a third party at the customer's request, the risk of accidental loss or accidental damage of the products shall pass to the customer once the products have left our facility/warehouse at the latest, irrespective of the agreed dispatch place and irrespective of which party bears the transport costs.
- 4.8 Unless explicitly stated otherwise, any use of Incoterms shall be deemed as a reference to the INCOTERMS 2010 as published by the International Chamber of Commerce (ICC).
- 4.9 The information we provide under export law is limited to the non-preferential origin under Art. 22 *et seq.* of the Community Customs Code, or, upon its applicability, Art. 59 *et seq.* of the European Union Customs Code Regulation (EU) 952/2013, respectively, and the CN subheading in our invoices. We do not issue declarations of preferential origin (supplier's declarations / movement certificates).

5. Securities

- 5.1 We reserve title to all delivered products until all our existing claims, including conditional and accessory claims against the customer resulting from our business relation have been

satisfied; for this purpose, all deliveries shall be considered as one single delivery transaction. In case of a current account, the reservation of title shall serve as security for our outstanding balance claim. All aforementioned provisions shall also apply to future claims. In case of a material breach of contractual obligations by the customer, we may immediately retrieve the products without further notice, reasonably taking into account